

Tharu Commission Act, 2017

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 6

Tharu Commission Act, 2074

Certification Date

2074.06.29

Amending Act

1. Some Nepal Acts Amendment Act, 2075 2075.11.19

Act Number 27 of the year 2074

Preamble: Whereas, it is desirable to make necessary provisions regarding the Tharu Commission for the protection and promotion of the identity, rights, and interests of the Tharu community, and for the empowerment of the Tharu community,

The Legislature-Parliament has enacted this Act pursuant to Sub-article (1) of Article 296 of the Constitution of Nepal. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act shall be called the "Tharu Commission Act, 2074".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Chairperson" means the Chairperson of the Commission and said term also refers to the Acting Chairperson.

(b) "Commission" means the Tharu Commission constituted pursuant to Article 263 of the Constitution.

(c) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules framed under this Act.

(d) "Tharu Community" means the indigenous Tharu community as defined by the Government of Nepal upon the recommendation of the Tharu Commission.

(e) "Member" means a member of the Commission and said term also includes the Chairperson.

(f) "Constitution" means the Constitution of Nepal. Chapter-2

Qualification for Chairperson and Members and Conditions for Vacancy of Office

3. Qualification for Chairperson and Members: The following person shall be qualified to be appointed to the office of Chairperson and Member of the Commission:-

(a) A person belonging to the Tharu community who has made significant contribution for at least ten years in the protection, promotion, and empowerment of the rights and interests of the Tharu community, or in the field of development or human rights,

- (b) Has obtained a bachelor's degree from a recognized university,
 - (c) Is not a member of any political party at the time of appointment,
 - (d) Has completed the age of forty-five years,
 - (e) Possesses a high moral character.
4. Conditions for Vacancy of Office: The office of the Chairperson or Member of the Commission shall become vacant in any of the following circumstances:-
- (a) If he/she submits a written resignation to the President,
 - (b) If he/she has completed the age of sixty-five years,
 - (c) If the term of office pursuant to Sub-article (3) of Article 263 of the Constitution has expired,
 - (d) If an impeachment motion against him/her is passed pursuant to Article 101 of the Constitution,
 - (e) If the President removes him/her from office upon the recommendation of the Constitutional Council on the ground that he/she is unable to perform the duties of his/her office due to physical or mental illness,
 - (f) If he/she dies.

Chapter-3

Functions, Duties, and Powers of the Commission

7. Functions, Duties, and Powers of the Commission: The functions, duties, and powers of the Commission shall be as follows:-

- (a) To study the overall situation of the Tharu community and recommend to the Government of Nepal on matters of policy, legal, and institutional reforms required in that regard,
- (b) To formulate national policies and programs for the protection and promotion of the rights and interests of the Tharu community and the empowerment of such community and recommend them to the Government of Nepal for implementation,
- (c) To conduct study and research on whether the provisions made regarding the protection and promotion of the rights and interests of the Tharu community and the empowerment of such community have been effectively implemented, and advise the Government of Nepal on the steps to be taken for effective implementation,
- (d) To advise the Government of Nepal on reforms required in the existing legal, policy, and institutional arrangements regarding the protection and promotion of the rights and interests of the Tharu community and the empowerment of such community,
- (e) To review, monitor, and evaluate the implementation of policies and programs related to the Tharu community,
- (f) To monitor or cause to be monitored the implementation of recommendations made or suggestions given by the Commission,
- (g) To formulate special programs for the development and empowerment of persons who are economically or socially backward within the Tharu community and recommend to the Government of Nepal for implementation,

- (h) To conduct study and research on the language, script, culture, history, tradition, literature, and art of the Tharu community, formulate programs for the protection and development of such language, script, culture, history, tradition, literature, and art, and recommend them to the Government of Nepal,
- (i) To conduct awareness programs for the protection and promotion of the rights and interests of the Tharu community and the empowerment of such community,
- (j) To formulate programs for ending evils, superstitions, and all forms of exploitation prevalent in the Tharu community and for the empowerment of the Tharu community, and recommend them to the Government of Nepal,
- (k) To help preserve and promote traditional skills, technologies, and specialized knowledge within the Tharu community and bring them into commercial use,
- (l) To monitor the implementation of international treaties and agreements to which Nepal is a party concerning the Tharu community and amended by Some Nepal Acts Amendment Act, 2075. make necessary recommendations or give suggestions to the Government of Nepal for implementation,
- (m) To collect complaints against persons or entities violating the rights of the Tharu community and recommend to the relevant body for investigation and inquiry into the same,
- (n) To conduct detailed study and research regarding the identity of the Tharu community and recommend to the Government of Nepal to list surnames,
- (o) To formulate policies and programs for the establishment and operation of a living museum for the protection and promotion of the tangible and intangible culture of the Tharu community, and recommend them to the Government of Nepal for implementation,
- (p) To conduct exploration and research on the place of origin of the Tharu community and recommend to the Government of Nepal for the protection and promotion of such archaeological and historical structures, objects, and sites,
- (q) To review, monitor, and evaluate awareness programs conducted by the Government of Nepal and other associations and organizations for the protection, promotion, and empowerment of the rights and interests of the Tharu community,
- (r) To formulate and implement a code of conduct for the Chairperson, Members, and employees of the Commission,
- (s) To approve the annual plan and programs of the Commission.
8. May Seek Advice and Consultation: The Commission may coordinate, consult, or seek advice from other constitutional bodies, government offices, or public institutions regarding its work and proceedings. 9. May Obtain Services of Experts: If any work required to be performed pursuant to this Act and prevailing federal law cannot be performed by the manpower working in the Commission, the Commission may, stating the reasons thereof, obtain the services of experts in accordance with the prevailing federal law. 10. May Form Committees or Task Forces: (1) The Commission may, by specifying procedures, form a committee or task force for the purpose of performing any work of a special nature related to the Commission.
- (2) The work or operational conditions of the committee or task force formed pursuant to Sub-section (1) shall be as determined by the Commission at the time of forming such committee or task force.

(3) While forming a committee or task force pursuant to Sub-section (1), representation shall be ensured on the basis of the principle of proportional inclusion as provided for in the Constitution. 11. May Coordinate and Cooperate: The Commission may coordinate and cooperate as necessary with government bodies or public institutions. Chapter-4

Conduct of Business of the Commission

12. Office of the Commission: (1) The office of the Commission shall be located in the Kathmandu Valley for conducting the business of the Commission.

(2) The Commission may also establish offices at the provincial level as required. 13. Meeting of the Commission: (1) The work required to be performed by the Commission pursuant to this Act shall be done by decisions of the Commission meeting.

(2) A meeting of the Commission shall be held on such date, time, and place as specified by the Chairperson as required.

(3) The Secretary of the Commission shall send a notice, specifying the date, time, and place of the meeting along with the agenda for discussion, to all Members in such a manner that they generally receive it at least forty-eight hours before the meeting time.

(4) If any Member wishes to discuss any subject other than the subjects mentioned in the agenda for discussion in a meeting pursuant to Sub-section (3), he/she shall submit a notice to the Commission Secretariat stating the subject desired to be discussed and the reasons thereof at least twenty-four hours before the meeting.

Upon receiving such notice, the Secretary of the Commission shall inform all Members thereof, and that subject shall be deemed to have been included in the agenda of the Commission meeting.

(5) Notwithstanding anything contained in Sub-sections (3) and (4), with the consent of all Members present at the meeting of the Commission, discussion may be held and a decision may be made even on subjects not included in the agenda.

(6) If more than fifty percent of the Members currently holding office in the Commission are present, the quorum for a meeting of the Commission shall be deemed to be fulfilled.

(7) The Chairperson shall preside over the meeting of the Commission.

(8) Decisions of the Commission shall be made by a majority of votes, and in case of a tie, the Chairperson shall cast the deciding vote.

(9) The Secretary of the Commission shall prepare the record of decisions of the Commission and keep it after obtaining the signature of the Chairperson and Members.

amended by Some Nepal Acts Amendment Act, 2075.(10) An officer of the Nepal Civil Service at the gazetted first class level shall serve as the Secretary of the Commission. Until such an employee is appointed, the senior-most employee of the Commission shall serve as the Secretary of the Commission.

(11) Other procedures relating to the meeting of the Commission shall be as determined by the Commission. 14. Not to Participate in Decision-Making Process in Case of Conflict of Interest: If any Member of the Commission has an interest, concern, or stake in any matter pending before the Commission, or if his/her close relative is directly affected by it, such Member shall give prior information of such matter to the

Commission and shall not participate in the decision-making process of the Commission regarding that matter. 15. Division of Work: The division of work of the Chairperson and Members shall be as specified by the Commission. 16. To Act as Acting Chairperson: If the office of the Chairperson falls vacant for any reason, amended by Some Nepal Acts Amendment Act, 2075. if he/she is unable to perform the functions of his/her office pursuant to Sub-article (6) of Article 101 of the Constitution, goes on a foreign visit, or remains on leave for more than seven days, the senior-most Member of the Commission shall act as the Acting Chairperson of the Commission. 17. No Hindrance to Proceedings of Commission: The proceedings of the Commission shall not be invalidated merely by reason of a vacancy in the seat of a Member omitted by Some Nepal Acts Amendment Act, 2075.. Chapter-5

Miscellaneous

18.

Organizational Structure and Employees of the Commission: (1) The organizational structure and employee posts of the Commission shall be as approved by the Government of Nepal. (2) The employees required for conducting the business of the Commission shall be provided by the Government of Nepal. 19. To Observe Official Dignity and Conduct: (1) The Chairperson and Members of the Commission shall observe official dignity as follows:- (a) To discharge their official duties independently, impartially, and honestly for the protection and promotion of the rights and interests of the Tharu community and for the empowerment of the Tharu community, (b) Not to engage in any act that may disturb the relationship between various castes, communities, and sects. (2) The Chairperson and Members of the Commission shall observe the official conduct pursuant to this Act or the prevailing federal law. 20. Duty to Provide Assistance in Proceedings: If the Commission requests assistance from any body or office-bearer in the course of performing its functions, it shall be the duty of such body or office-bearer to provide such assistance. 21. May Send Written Communication for Implementation: If any body or office-bearer fails to provide necessary assistance to the Commission, the Commission may send written communication for assistance to the supervisory body or officer of such body or officer. 22. Annual Report: (1) The Commission shall submit an annual report of its work and proceedings to the President within three months from the date of expiry of the fiscal year. (2) In addition to other subjects, the annual report pursuant to Sub-section (1) shall include the following subjects:- (a) Details and cost expenditure of the implementation of the annual program of the Commission, (b) Details of recommendations and suggestions given by the Commission to the Government of Nepal or any other body, (c) Status of implementation of recommendations and suggestions as per clause (b), (d) Status of financial and physical resources of the Commission and their utilization, (e) Details of other work and proceedings performed regarding the discharge of duties required to be fulfilled by the Commission pursuant to this Act. 23. Liaison with Government of Nepal: The Commission shall liaise with the Government of Nepal through the Ministry of Federal Affairs and General Administration. 24.

Delegation of Powers: The Commission may, as required, delegate any of the powers conferred to it pursuant to this Act to the Chairperson, Member, Government of Nepal, Provincial Government, any body, or any official or employee of the local government, subject to the prescribed conditions, for exercise and compliance. repealed by Some Nepal Acts Amendment Act, 2075. 25. 26. Protection of Actions Done in Good Faith: No legal action shall be instituted against any office-bearer, employee, or any person assigned by the Commission for any act done in good faith amended by Some Nepal Acts Amendment Act, 2075. pursuant to this Act or the rules framed under this Act. 27. Power to Frame Rules: (1) The Commission may frame necessary rules for implementing this Act. (2) If the rules framed pursuant to Sub-section (1) include subjects that may impose financial burden or liability on the Government of Nepal, the Commission shall amended by

Some Nepal Acts Amendment Act, 2075.obtain the consent of the Ministry of Finance of the Government of Nepal. (3) Rules framed by the Commission pursuant to Sub-section (1) shall come into force from the date of their publication in the Nepal Gazette. 28. Power to Frame Directives: The Commission may, remaining subject to this Act and the rules framed under this Act, frame necessary directives for the smooth conduct or causing to be conducted of the work to be performed by it. Schedule-repealed by Some Nepal Acts Amendment Act, 2075.